

UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON,
Plaintiff,

vs.

Case No.: 3:25cv1447/MCR/ZCB

AMENTUM GOVERNMENT
SERVICES PARENT
HOLDINGS LLC, et al.,
Defendants.

_____ /

ORDER

This matter is before the Court on Plaintiff's "Motion for Leave to File a Seventh Amended Complaint." (Doc. 54). Defendants have opposed the motion. (Doc. 56).

Under Rule 15(a), after a responsive pleading has been served a party "may amend the party's pleading only by leave of court or by written consent of the adverse party" Fed. R. Civ. P. 15(a). A court should "freely give leave when justice so requires." *Id.* But leave may be denied based on "undue delay, bad faith or dilatory motive on the part of the movant, repeated failure to cure deficiencies by amendments previously allowed, undue prejudice to the opposing party by virtue of allowance of the amendment, [and] futility of amendment. . . ." *Burger*

King Corp. v. Weaver, 169 F.3d 1310, 1319 (11th Cir. 1999) (cleaned up). Although “allowing an amendment is a discretionary decision . . . district courts should generally exercise their discretion in favor of allowing amendments to reach the merits of a dispute.” *Pinnacle Ad. & Mktg. Grp., Inc. v. Pinnacle Ad. & Mktg. Grp., LLC*, 7 F.4th 989, 1000 (11th Cir. 2021). Thus, “unless a substantial reason exists to deny leave to amend, the discretion of the district court is not broad enough to permit denial.” *Shipner v. E. Air Lines, Inc.*, 868 F.2d 401, 407 (11th Cir. 1989).

In this case, the operative complaint currently is the Sixth Amended Complaint (Doc. 47). Defendants have moved to dismiss the Sixth Amended Complaint. (Doc. 51). It was after Defendants moved to dismiss that Plaintiff sought leave to file the proposed Seventh Amended Complaint. In the proposed Seventh Amended Complaint, Plaintiff adds no new parties or claims. Rather, Plaintiff adds new factual allegations. Plaintiff also states that she has provided additional information regarding her exhaustion of administrative remedies through the EEOC (an issue raised by Defendants in their motion to dismiss). Plaintiff claims she could not have added this information earlier because the

EEOC right to sue letter was issued after she filed the Sixth Amended Complaint. (Doc. 54 at 2).

Although the Court is loath to provide Plaintiff with another opportunity to amend her complaint, it will reluctantly permit Plaintiff to file the proposed Seventh Amended Complaint. In doing so, the Court is mindful of Plaintiff's *pro se* status and recognizes that she appears to be engaged in good faith efforts to fashion a pleading that is legally sufficient.

The Court does not believe that accepting the Seventh Amended Complaint will unduly prejudice Defendants. And “the most important factor to consider in deciding whether to grant or deny leave to amend is prejudice to the opposing party.” *Cowart v. Metro. Life Ins. Co.*, 444 F. Supp.2d 1282, 1295 (M.D. Ga. 2006). “Although allowing the Plaintiff[] to amend the Complaint will require [Defendant] to file a new Motion to Dismiss, this requirement does not rise to the level of undue prejudice. The prejudice suffered by [Defendant] upon the filing of the Amended Complaint will be minimal, and may amount simply to refileing their current motion with slight alterations” *Doe v. State Farm Fire & Casualty Co.*, No. 1:20cv2274, 2020 WL 13598799, at *4 (N.D. Ga. Dec.

10, 2020); *see also Giummo v. Olsen*, No. 1:15cv3928, 2017 WL 11634375, at *2 (N.D. Ga. Oct. 23, 2017) (stating that the drafting of a new motion to dismiss to address the allegations in an amended complaint “does not suffice as undue prejudice”). Additionally, although the case has been pending for approximately one year, “[t]he lengthy nature of litigation, without any other evidence of prejudice to the defendants or bad faith on the part of the plaintiffs, does not justifying denying the plaintiffs the opportunity to amend their complaint.” *Bryant v. Dupree*, 252 F.3d 1161, 1164 (11th Cir. 2001). As to Defendants’ argument that leave to amend should be denied because of futility, the Court is not convinced at this point that all Plaintiff’s claims against all Defendants in the proposed Seventh Amended Complaint would be subject to dismissal.

For the reasons above, it is **ORDERED** that:

1. Plaintiff’s motion for leave to amend (Doc. 54) is **GRANTED**.
2. The proposed Seventh Amended Complaint (Doc. 55) is **ACCEPTED** and deemed the operative complaint in this case.
3. The Clerk of Court shall **TERMINATE** Defendants’ motion to dismiss (Doc. 51) and Plaintiff’s Motion Requesting Ruling (Doc. 60) as moot.

4. Defendants shall have **twenty-one days** from today's date to respond to the Seventh Amended Complaint (Doc. 55).

5. Plaintiff is hereby advised that absent extremely unusual and extraordinary circumstances no further amended complaints will be authorized.

SO ORDERED this the 14th day of August 2026.

s/ *Zachary C. Bolitho*

Zachary C. Bolitho

United States Magistrate Judge